

**DEPARTMENT THREE  
JUDGE STEPHEN GIZZI  
707-207-7303  
TENTATIVE RULINGS SCHEDULED FOR  
FRIDAY, JUNE 26, 2026**

***The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.***

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**JP MORGAN CHASE BANK, N.A. v. CATO  
Case No. CL25-04809**

Motion to Vacate Dismissal and Enter Judgment filed by Plaintiff

**TENTATIVE RULING**

The court finds that service by mail of plaintiff's motion to vacate the dismissal and enter judgment is inadequate. Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action, such as defendant CATO in the present case, is typically required to be made in the same manner required for service of summons and complaint. (See, e.g., an application for writ of attachment under C.C.P. §482.070(d) and an application for writ of possession under C.C.P. §512.030(b)). Plaintiff did not serve the motion in this manner.

Therefore, the court continues plaintiff's motion to August 7, 2026, at 9:00 a.m. in Department 3 to give plaintiff an opportunity to properly serve the motion at least 16 days before the hearing.

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**SHORELINE SHOPPING CENTER, LLC v. DEAN ANDREW PICK, et al.  
Case No. CU24-01601**

Motion to Vacate Default and Default Judgment

**TENTATIVE RULING**

Defendants' Motion to Vacate Default and Default Judgment is DENIED. The Court finds that, based on legal filings made by the defendants, the address where substitute service was completed constitutes a valid service address for the defendants for purposes of this litigation. Further, service was made by a registered process server, which creates a rebuttable presumption that service was properly completed. (Ev. Code Sec. 647). Defendants have failed to successfully rebut this presumption. While the papers were left on the front porch, this was only after the process server contacted the daughter of the defendants, she refused to accept the documents and abruptly shut the door on the process server in a continuing pattern of evasion. Therefore, she was aware of the papers and their presence and such was a valid deliver under the Code.

The court takes note that the record in this case shows a long history of evasion and chicanery on the part of the defendants. There is evidence of questionable asset transfers and other activities that appear designed to avoid the consequences of defendants' business losses. In addition to the facts set forth in the record, the court finds good reason to question the credibility of the defendants.

Finally, defendants' request for judicial notice is DENIED. Judicial notice may not be taken of any matter unless authorized or required by law. (Ev. Code 450) Here, the specific information requested is not of the type that is subject to judicial notice. Further, it is a component of public filings so it could not even be subject to a protective order since defendants have already exposed the information in other forums.

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**THE VALLEJO POLICE OFFICERS' ASSOCIATION v. STATE OF CALIFORNIA v. CITY OF VALLEJO, et al.**  
**Case No. cu24-03516**

Motion by Defendant CITY OF VALLEJO to Compel Further Responses to Requests for Production of Documents, Set One, and Request for Monetary Sanctions

**TENTATIVE RULING**

With the clarifications made in opposition that further confirm that Plaintiff has produced all documents in his possession, custody or control that are responsive to the nine requests for production at issue in this motion, without withholding any due to a claim of privilege, and the confirmation in the reply that the motion is effectively being withdrawn, the court denies the motion as moot.

The court declines under C.C.P. §2031.310(h) to impose sanctions against the moving party or his counsel, finding substantial justification to press for confirmation that despite the significant allegations of wrongful disclosures made by the moving party and resulting damages raised by Plaintiff's 66-page complaint, the only responsive documents Plaintiff identified and produced were those obtained from the CITY's website, and to the extent they were produced in redacted form, were not redacted by Plaintiff or his counsel.